

The demurrer to the first cause of action is **SUSTAINED, WITHOUT LEAVE TO AMEND**, as to the individual named defendants. Labor Code section 1102.5 imposes liability on an employer and does not impose personal liability on individual employees. As amendment would be futile, the demurrer is sustained without leave to amend.

The demurrer to the second cause of action is **OVERRULED**. Read as a whole, and considering Defendants' equal or superior knowledge, the complaint sufficiently pleads the second cause of action. Defendants have notice of the basic facts and nature of the claim, including the substance of the statements at issue. Any evidentiary gaps can be remedied through discovery.

Motion to Strike Treble Damages from Plaintiff's Complaint

Defendant's motion to strike treble damages from Plaintiff's complaint is GRANTED IN PART AND DENIED IN PART.

As to Defendant Merced Community College District, the motion is GRANTED WITHOUT LEAVE TO AMEND as the Court finds the treble damages to be punitive in nature. As punitive damages are not available against a government entity the motion is granted without leave to amend.

Accordingly, the Court strikes from the complaint, page 19, lines 9-10, and page 25, line 7, as to Defendant Merced Community College District only.

In so far as the motion pertains to the individual Defendants, the motion is DENIED.

26CV-04129 Jason Ochoa vs Jeremy Branco

Order to Show Cause Re: Restraining Order

Appearance required. Proof of unsuccessful service of the notice of hearing on Respondent was filed August 24, 2026.

26CV-04619 Karen Marquez vs Payton Johnson

Order to Show Cause Re: Restraining Order

Appearance required. Proof of timely personal service of the notice of hearing on Respondent was filed September 2, 2026. A response was filed September 11, 2026, however it was not accompanied by a proof of service.
